

26SMCV02748 26SMCV02748

County: los-angeles

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Case Number: 26SMCV02748 Hearing Date: July 21, 2026 Dept: 205

Superior Court of California

County of Los Angeles

Beverly

Hills Courthouse | Department 205

ADANY SANCHEZ, an individual,

Plaintiff,

v.

UBER TECHNOLOGIES, INC., et al.,

Defendants.

Case No.:

26SMCV02748

Hearing Date: 7/21/26

Trial Date:

None set

[TENTATIVE] RULING RE:

Motion to Strike the Complaint

Background

On May 15, 2026, Plaintiff Adany Sanchez ("Plaintiff") filed the operative Complaint against Defendants Uber Technologies, Inc. ("Uber"); Rasier-CA, LLC ("Rasier-CA"); Rasier, LLC ("Rasier"); Osvaldo Del Rio ("Rio"); and DOES 1 through 100 (collectively, "Defendants"), asserting causes of action for: (1) Negligence and (2) Negligent Hiring, Training, Supervision, and Retention.

On June 22, 2026, Defendants Uber, Rasier-CA, and Rasier (jointly, "Uber Defendants") filed the instant Motion to Strike the Complaint. The opposition was due July 8, 2026. An Opposition was filed on July 15, 2026, but has not been considered because it was late.

Legal Standard

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e)." (Code Civ. Proc., § 435, subd. (b)(1).)¿¿

"The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading." (Code Civ. Proc., § 436, subd. (a); see also *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded".].)¿

The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to

strike must appear on the face of the pleading or by way of judicial notice.
(Code Civ. Proc., § 437.)

Meet and Confer

Prior

to filing a motion to strike, the moving party is required to meet and confer in person, by telephone, or by videoconference with the party who filed the pleading for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the motion to strike. (Code Civ. Proc., § 435.5.)

Here, Uber Defendants' advance

the declaration of their counsel of record, Nataly Rahmo attests to meeting and conferring with Plaintiff's counsel via telephone call on June 17, 2026. (Rahmo Decl., ¶¶8-9.)

The parties were unable to reach an informal agreement. (Id.) Thus, Uber Defendants have fulfilled the meet and confer requirement.

Analysis

Here,

Uber Defendants move to strike all references and allegations in support of Plaintiff's request for punitive damages at ¶¶38-39, 40(d), 47-48, 51, 52(d), and Prayer for Relief, ¶16. The motion is made on the grounds that the Complaint does not contain sufficient allegations to support a request for punitive damages.

"In order to survive a

motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (Clauson v.

Superior Court (1998) 67 Cal.App.4th 1253, 1255.) The California Civil Code Section 3294, subdivision (a) authorizes punitive

damages upon a showing of malice, fraud, or oppression.

Malice is defined as

either "conduct which is intended by the defendant to cause injury to the plaintiff", or "despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) "Despicable conduct is conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down

upon and despised by ordinary decent people.” (Mock v. Michigan Millers Mutual Ins. Co. (1992) 4 Cal. App. 4th 306, 331.) Fraud under California Civil Code Section 3294, subdivision (c)(3) “means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code, § 3294, subd. (c)(3).) The California Civil Code Section 3294, subdivision (2) defines oppression as “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code, § 3294, subd. (2).)

Punitive damages thus

require more than the mere commission of a tort. (Taylor v. Superior Court (1979) 24 Cal.3d 890, 894-95.) Specific facts must be pled in support of punitive damages. (Hillard v. A.H. Robins Co. (1983) 148 Cal.App.3d 374, 391-392.) A “conclusory characterization of [a] defendant’s conduct as intentional, wilful and fraudulent [is] [a] patently insufficient statement of oppression, fraud, or malice”. (Brousseau v. Jarrett (1977) 73 Cal.App.3d 864, 865.) Facts must be pled to show that a defendant “act[ed] with the intent to vex, injure or annoy, or with a conscious disregard of the plaintiff’s rights.” (Silberg v. California Life Ins. Co. (1974) 11 Cal.3d 452, 462.) “When nondeliberate injury is charged, allegations that the defendant’s conduct was wrongful, willful, wanton, reckless or unlawful do not support a claim for exemplary damages; such allegations do not charge malice.” (G.D. Searle & Co. v. Superior Court (1975) 49 Cal.App.3d 22, 29.) Conduct that is merely negligent will not support a claim for punitive damages. (Tomaselli v. Transamerica Ins. Co. (1994) 25 Cal.App.4th 1269, 1288.)

However, “An employer

shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (Civ. Code § 3294, subd. (b) (emphasis added).)

The

Complaint alleges, inter alia, that Uber is a Delaware corporation.

(Compl., ¶¶2, 11.) Rasier-CA and Rasier are Delaware limited liability companies. (Id., ¶¶2, 12.) On or about May 3, 2026, Rio while transporting a passenger via the Uber rideshare app, struck a deputy with the Los Angeles County Sheriff's Department during a traffic stop and attempted to evade the police, which caused him to collide with Plaintiff's vehicle. (Id., ¶¶1, 3-5.) As a result of the collision, Plaintiff suffered severe injuries. (Id., ¶6.) Uber requires, authorizes controls and/or pays thousands of drivers to provide transportation services including Rio. (Id., ¶¶18-22.) Rio was acting within the scope and course of his employment and/or agency with Uber Defendants when the collision occurred. (Id., ¶25.) Uber Defendants officers, directors, or managing agents knew of the above described conduct from Rio and/or adopted or approved that conduct after it happened. (Id., ¶¶39, 51.)

Taking

these allegations as true, the Complaint does not allege any specific facts to support Plaintiff's request for punitive damages. It is undisputed that Uber Defendants are alleged to be corporate employers of Rio. However, the Complaint merely alleges in a conclusory manner that officers, directors, or managing agents of Uber Defendants knew of Rio's conduct and/or ratified and approved such conduct after it happened. There are no allegations of who the specific officer, director, or managing agent is who knew of Rio's alleged conduct and how they acquired advanced knowledge of Rio's alleged unfitness as an employee. Without more specific facts pled in the Complaint, Plaintiff fails to allege any conduct on behalf of an officer, director, and/or managing agent of Uber Defendants, which constitute malice, oppression, and/or fraud.

Conclusion

Based on

the foregoing, Defendants Uber Technologies, Inc., Rasier-CA, LLC, and Rasier, LLC's Motion to Strike the Complaint is GRANTED.

Defendants Uber Technologies, Inc.,
Rasier-CA, LLC, and Rasier, LLC are ordered to give
notice.

Dated: July 21, 2026

Edward B. Moreton, Jr.

Judge of the Superior Court